

Inha University in Tashkent

Theme 7: Judicial Authority in the Republic of Uzbekistan

Tashkent – 2024

Outline:

- The Activity of Judiciary and Judicial System
- The Structure and Powers of Constitutional Court
- The Competences of Supreme Court
- The Procedure for the Election and Appointment of Judges

The Judicial Power As a Main State Authority

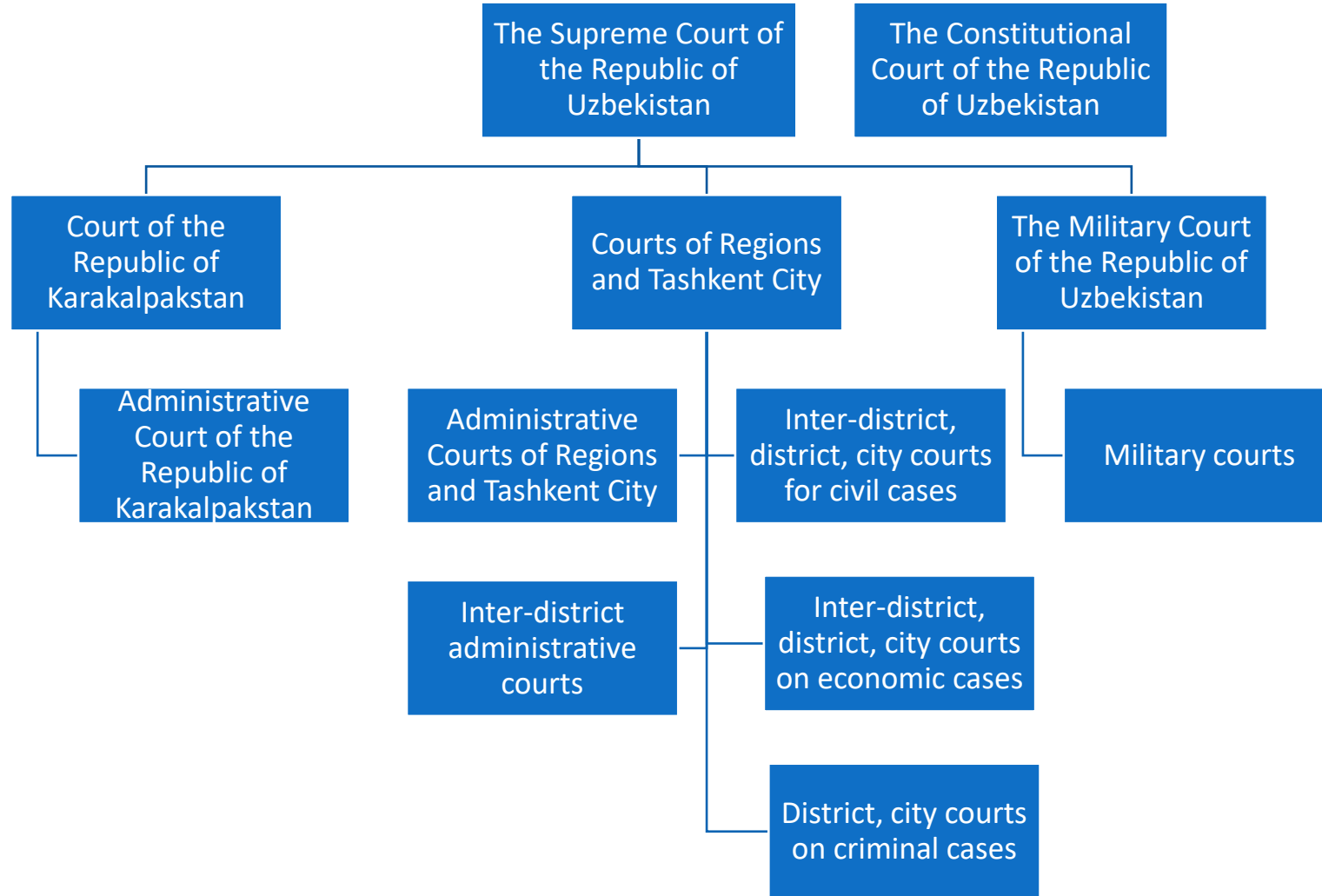
- The authority and the role of the judiciary are highly valued and, as a rule, the justice institution is referred to the court in legal democratic state and free civil society
- Judicial power is one of the main independent branches of state power and carries out activities aimed at the administration of justice in society
- Judicial power is an authorized body to investigate cases on the basis of absolute observance of the principles of supremacy of the Constitution and laws of the Republic of Uzbekistan



The Activity of Judicial Authority



- The constitutional status, structure and legal basis of the activity of judicial authority in our country are defined and regulated by:
 - the Constitution of the Republic of Uzbekistan;
 - the Laws of the Republic of Uzbekistan - "On Courts" (June 26, 2021) and "On Constitutional Court" (March 12, 2021)
- Article 130 - 'The judicial authority in the Republic of Uzbekistan shall function independently from the legislative and executive authorities, political parties, other public associations.'



The Constitutional Court

- The Constitutional Court shall be elected by the Senate of the Oliy Majlis of the Republic of Uzbekistan upon the submission of the President of the Republic of Uzbekistan from among specialists in the sphere of politics and law, recommended by the Supreme Judicial Council of the Republic of Uzbekistan, including the representative of the Republic of Karakalpakstan.
- Judges of the Constitutional Court shall be elected for ten-year terms without the right to re-election.
- Each judge of the Constitutional Court shall be elected individually. The person who has obtained the majority of the votes of the total number of members of the Senate of the Oliy Majlis of the Republic of Uzbekistan shall be considered as elected.
- The Constitutional Court shall consist of nine judges of the Constitutional Court, including the chairman and deputy of chairman.
- The Chairman of the Constitutional Court and Deputy of Chairman shall be elected among its judges at the Constitutional Court Council.



The Structure of Constitutional Court

- Abdusalomov Mirza-Ulubek Elchievich – Chairman of the Constitutional Court of the Republic of Uzbekistan;
- Gafurov Asqar Boyisovich – Deputy Chairman of the Constitutional Court;
- Balkibaeva Janagul Ismailovna – Judge of the Constitutional Court;
- Kamilov Kozimdjon Fozilovich – Judge of the Constitutional Court;
- Davletova Karomatjon Khudaiberganovna – Judge of the Constitutional Court;
- Rakhimov Abdumannab Kuzievich - Judge of the Constitutional Court;
- Ismailov Rakhat Aminbaevich – Judge of the Constitutional Court;
- Rakhmanov Akmal Ergashevich– Judge of the Constitutional Court.



The Competences of Constitutional Court

- 1) define the compliance of the Constitution of the Republic of Uzbekistan with the laws of the Republic of Uzbekistan and resolutions of the chambers of the Oliy Majlis of the Republic of Uzbekistan, decrees, resolutions and orders of the President of the Republic of Uzbekistan, resolutions of the government, decisions of local bodies of state authority, interstate treaties and other obligations of the Republic of Uzbekistan;
- 2) conform the compliance of the Constitution of the Republic of Uzbekistan with the constitutional laws of the Republic of Uzbekistan — until they are signed by the President of the Republic of Uzbekistan, international treaties of the Republic of Uzbekistan — until they are signed by the President of the Republic of Uzbekistan of the laws of the Republic of Uzbekistan on their ratification;
- 3) conform the compliance of the Constitution of the Republic of Uzbekistan with issues to be submitted to the referendum;
- 4) conform the compliance of the Constitution of the Republic of Karakalpakstan to the Constitution of the Republic of Uzbekistan, laws of the Republic of Karakalpakstan — to laws of the Republic of Uzbekistan;

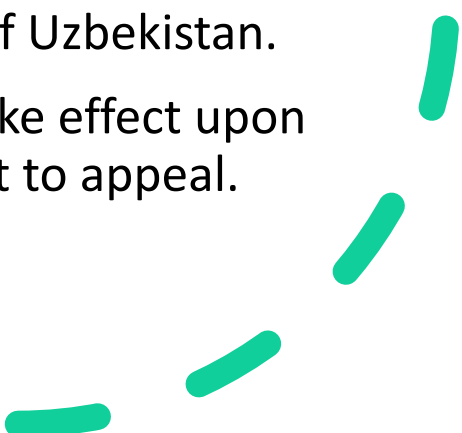


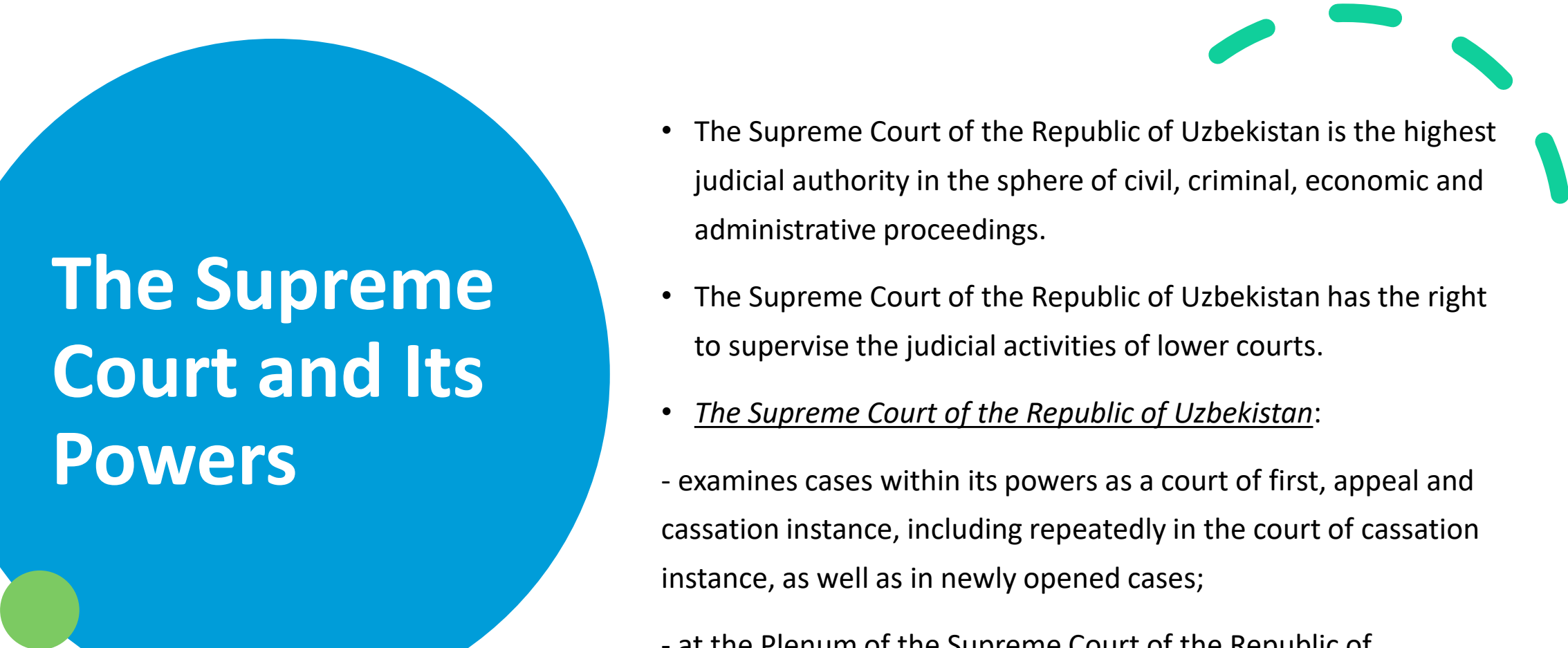
5) interpret the norms of the Constitution and laws of the Republic of Uzbekistan;

6) consider the appeal of the Supreme Court of the Republic of Uzbekistan, initiated by the courts, on compliance of the Constitution of the Republic of Uzbekistan, normative-legal acts subjects to application in concrete cases;

7) based on summarizing practices of the constitutional legal procedures, represent annually the information on a status of constitutional lawfulness to the Chambers of of the Oliy Majlis of the Republic of Uzbekistan and the President of the Republic of Uzbekistan;

8) hear other cases relating to its competence in accordance with the Constitution and laws of the Republic of Uzbekistan.

- Judgments of the Constitutional Court shall take effect upon publication. They shall be final and not subject to appeal.
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The Supreme Court and Its Powers

- The Supreme Court of the Republic of Uzbekistan is the highest judicial authority in the sphere of civil, criminal, economic and administrative proceedings.
- The Supreme Court of the Republic of Uzbekistan has the right to supervise the judicial activities of lower courts.
- *The Supreme Court of the Republic of Uzbekistan:*
 - examines cases within its powers as a court of first, appeal and cassation instance, including repeatedly in the court of cassation instance, as well as in newly opened cases;
 - at the Plenum of the Supreme Court of the Republic of Uzbekistan, it considers the actual issues of judicial practice and gives explanations regarding the application of legislation;

The Powers and the Structure of Supreme Court

- studies the organizational activities of military courts, the court of the Republic of Karakalpakstan, regional and Tashkent city courts, the administrative court of the Republic of Karakalpakstan, regional and Tashkent administrative courts, inter-district, district, and city courts;
- the Plenum of the Supreme Court of the Republic of Uzbekistan supervises the implementation of the explanations by the courts;
- performs a systematic analysis of court practice and court statistics;
- organizes work on improving the qualifications of judges and court staff.
- The Supreme Court of the Republic of Uzbekistan consists of a chairman, his first deputy - the chairman of the judicial panel on administrative cases, deputies - chairmen of the judicial panels on civil, criminal and economic cases, and judges of the Supreme Court of the Republic of Uzbekistan.

Composition and Administration of Supreme Court

- Kamilov Kozimdjani Fazilovich - Chairman of the Supreme Court of the Republic of Uzbekistan
- Mahmudova Robahon Anvarovna - First Deputy Chairman of the Supreme Court of the Republic of Uzbekistan - Chairman of the Judicial Board for Administrative Cases
- Turakhujaev Khalilillo Sobirjonovich - Deputy Chairman of the Supreme Court of the Republic of Uzbekistan - Chairman of the Judicial Board for Civil Cases
- Muslimov Ikram Tukhtamuratovich - Deputy Chairman of the Supreme Court of the Republic of Uzbekistan - Chairman of the Judicial Board for Criminal Cases
- Isakov Bakhtiyor Tursinmatovich - Deputy Chairman of the Supreme Court of the Republic of Uzbekistan - Chairman of the Judicial Board for Economic Affairs
- Yuldashev Jakhongir Inomovich - Chief of Staff of the Supreme Court of the Republic of Uzbekistan
- Teshaboev Bakhrom Islamovich - Director of the Department of Courts under the Supreme Court of the Republic of Uzbekistan





Office of the Judge

- A citizen of the Republic of Uzbekistan who has reached the age of thirty-five and has a higher legal education can be a candidate for the position of judge.
- A person who has at least fifteen years of work experience in a legal specialty, including, as a rule, at least seven years of work experience as a judge, can be a judge of the Supreme Court of the Republic of Uzbekistan.
- A person who has at least ten years of work experience in a legal specialty, including, as a rule, at least two years of work experience as a judge, can be a judge of the court of the Military Court of the Republic of Uzbekistan, the Court of the Republic of Karakalpakstan, the Administrative Court of the Republic of Karakalpakstan, the regional, Tashkent city court, the regional, Tashkent city administrative court.
- A person who has reached the age of thirty-five and has at least seven years of legal experience can be a judge of an inter-district, district, city court, or a regional military court.
- Candidates who are appointed to the post of judge for the first time must study at the High School of Judges under the Supreme Council of Judges of the Republic of Uzbekistan. During the period of study, they are exempted from labor obligations without maintaining the average monthly salary of the main workplace, but the workplace (position) is kept during the entire period of study.



The procedure for the election and appointment of judges

- The chairman of the Supreme Court of the Republic of Uzbekistan, the first deputy chairman of the Supreme Court of the Republic of Uzbekistan, the deputy chairman - the chairman of the judicial panel of the Supreme Court of the Republic of Uzbekistan shall be elected by the Senate of the Oliy Majlis of the Republic of Uzbekistan on the recommendation of the President of the Republic of Uzbekistan.
- The regional, Tashkent city court, military court of the Republic of Uzbekistan, the chairman, deputy chairman of regional, Tashkent city administrative court shall be appointed by the President of the Republic of Uzbekistan on the recommendation of the Supreme Council of Judges of the Republic of Uzbekistan.
- The Court of the Republic of Karakalpakstan, the Chairman and the Deputy Chairman of the Administrative Court of the Republic of Karakalpakstan shall be elected by the Jokorgi Kenges of the Republic of Karakalpakstan on the recommendation of the Chairman of the Jokorgi Kenges of the Republic of Karakalpakstan based on the conclusion of the Supreme Council of Judges of the Republic of Uzbekistan agreed with the President of the Republic of Uzbekistan.
- The chairman, deputy chairman of the inter-district, district, city court of the Republic of Karakalpakstan shall be appointed by the Jokorgi Kenges of the Republic of Karakalpakstan on the recommendation of the Supreme Council of Judges of the Republic of Uzbekistan.
- The inter-district, district, city court, the chairman, deputy chairman of territorial military court shall be appointed by the Supreme Council of Judges of the Republic of Uzbekistan.



- A judge is first elected or appointed for a five-year term, a subsequent ten-year term, and an indefinite term of office.
- The same person may not be elected as Chairperson, deputy Chairperson of the Supreme Court of the Republic of Uzbekistan more than two terms in a row.
- Judges shall be independent and subject solely to the Constitution and the law. Any interference in the work of judges in administering law shall be inadmissible and punishable by law. Judges shall not be accountable in specific cases.

Thank you for your attention!